



Preamble

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN **SOCIALIST** **SECULAR** DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE, social, economic and political;

42nd Constitutional Amendment Act (1976) added these three words

and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity **and integrity** of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

Justice, Fraternity, Equality

13 Dec 1946

Objective Resolution

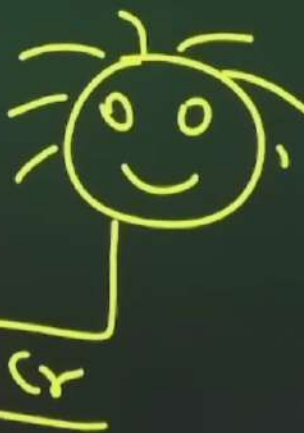
Road map

Roadmap

- Socialist -
- Secular -
- Sovereign
- Democratic
- Republic

Indians

→ Nehru ji



Scr

Introduction

- Preamble of Indian constitution is preface or introduction that sets out the guiding purpose, principles and philosophy of the constitution.
- Preamble was enacted by the Constituent Assembly after the rest of the Constitution was already enacted to ensure its conformity with the Constitution.
- Preamble contains the grand and noble vision of the Constituent Assembly, and reflects the dreams and aspirations of the founding fathers of the Constitution.
- 'Objectives Resolution' drafted and moved by Pandit Nehru (Dec 13, 1946) serves as blueprint for Preamble to the Indian Constitution.
- American Constitution was the **first** to begin with a preamble.
- Explains the purposes and objectives of constitution and provides a guideline to the constitution.

Tags and Title

- Preamble as the "identity card of the Constitution" – N.A. Palkhivala.
- ACCORDING TO K.M MUNSHI IT IS THE POLITICAL HOROSCOPE OF THE CONSTITUTION
- ACCORDING TO ERNST BARKER, PREAMBLE IS THE KEY NOTE TO THE CONSTITUTION
- According to Thakur das Bhargav: It is jewel Set of Constiution
- It is the soul of our Constitution, which lays down the pattern of our political society. It contains a solemn resolve, which nothing but a revolution can alter – M. Hidayatullah

Context

"We THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a 1 2 3 4 5 SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens:

JUSTICE Social, Economic and Political;

LIBERTY of thought, expression, belief, faith and worship;

EQUALITY of status and of opportunity; and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION".

T E B F A W

PREAMBLE GIVES AN IDEA ABOUT THE FOLLOWING:

- Source of the constitution – The people of India
- Nature of Indian state – Sovereign, Socialist, Secular, Democratic, Republic.
- Objectives – Justice, Liberty, Equality, Fraternity.
- Date of its adoption – November 26, 1949
- Preamble is neither a source nor a prohibition upon the powers of legislature.
- It is non-justiciable – provisions are not enforceable in courts of law.

2.SOCIALIST:

- Added by 42nd CAA 1976
- "Socialism" as an economic philosophy – India adopted Mixed Economy.
- **Article 36 to 51(DPSP)**- Underline the socialist leanings
- **Indian Socialism** – democratic socialism; Unique blend of **Gandhism and Marxism**
- Socialism as a social philosophy stresses more on societal equity and equality.
- "**Democratic socialism**" aims to end poverty, ignorance, disease and inequality of opportunity, observed by SUPREME COURT.

Handwritten notes:
Socialist
Secular 42nd AA, 1976
Integrity S, S, Integrity

.SECULAR:

- Added by 42nd CAA 1976
- **Positive concept** – State will have no religion of its own and all persons will be equally entitled to the freedom of conscience and the right freely to profess, practice and propagate the religion of their choice (S R Bommai and Others vs Union of India)
- **Article 25-28**(Fundamental Right to Freedom of Religion) – Highlight the secular character.
- **Constitutional basis** – Preamble, Art. 14, 15, 16, 25-28, 29-30, 44, 325 etc.



4.DEMOCRATIC:

- Constitution has established a form of Government which gets its authority from the will of the people – “Doctrine of popular sovereignty”
- The rulers are elected by the people and are accountable to them.
- Phrase ‘democratic’ – Political democracy and Socio-economic democracy.
- Representative parliamentary democracy of India– Universal adult franchise, periodic elections, rule of law, independent judiciary, absence of discrimination on certain grounds.

REPUBLIC:

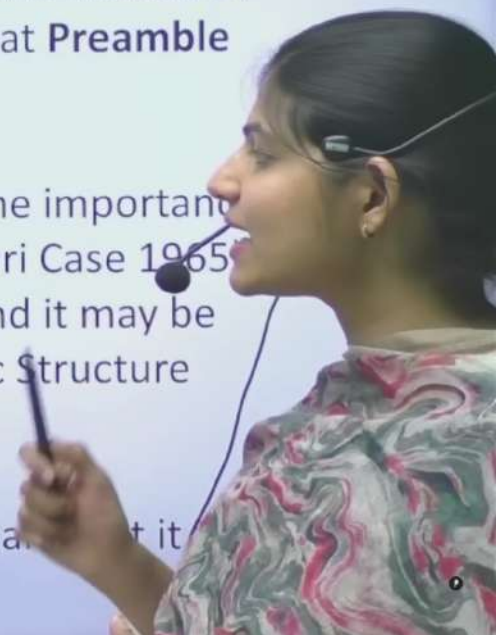
- Democratic polity classified into two categories—monarchy and republic.
- Democratic republic entails **elected head of state** – Directly or indirectly, for a fixed tenure –PRESIDENT OF INDIA indirectly elected for period of 5 years.
- **Article 54-55**– related to the election of the President.

Judicial Proceeding

- **Berubari Union case (1960)** – Although preamble assist at interpretation of constitution and key to the minds of the makers of the Constitution, Supreme Court specifically opined that **Preamble is *not* a part of the Constitution**.

- **Kesavananda Bharti case (1973)** – Recognised extreme importance of Preamble and **overruled** its earlier decision (Berubari Case 1965) and asserted **Preamble is a part of the constitution** and it may be amended subject to the basic structure doctrine. Basic Structure doctrine evolved.

- **LIC of India Case (1995)** – Upheld the Preamble and said that it is an **integral part of the Constitution**



6. How many types of justice has been enshrined in the Preamble of the Constitution of India?

(a) Two

☒ (b) Three

Ans. (b)

(c) One

(d) Four



8. The ideals and objectives outlined in the Preamble of the Indian Constitution have been further elaborated in

- (a) The Chapter on Fundamental Rights
- (b) The Chapter on Directive Principles of State Policy
- (c) The Chapter on Directive Principles of State Policy, Fundamental Rights, and Fundamental Duties
- (d) Nowhere else in the text of the Constitution



9. Economic Justice' as one of the objectives of the Indian Constitution has been provided in ✓

- (a) The Preamble and the Fundamental Rights
- (b) The Preamble and the Directive Principles of State Policy
- (c) The Fundamental Rights and the Directive Principles of State Policy
- (d) None of the above

Ans. (b)

The Preamble explicitly provides for Economic Justice as an objective of the Indian Constitution.

The part of Directive Principles of State Policy, on the other hand, contains several Articles, which provide for Economic Justice. e.g., Article 38(1) says "The State shall strive to promote the welfare of the people by securing and protecting as effectively as it may a social order which is consistent with justice, social, economic and political, shall inform the institutions of the national life."



10. Consider the following and arrange these in chronological order:

- I. Golak Nath Case
- II. Keshavanand Bharti Case
- III. 24th Constitution Amendment Act
- IV. 42nd Constitution Amendment Act

Select the correct answer from the codes given below.

- (a) I, III, II, IV
- (b) I, II, III, IV
- (c) III, I, II, IV
- (d) III, I, IV, II



12. In which of the following cases Supreme Court held that 'The Preamble forms part of the Constitution?

- (a) Union of India Vs. Dr. Kohli
- (b) Banarsidas Vs. State of U.P.
- (c) Bommai Vs. Union of India
- (d) Malak Singh Vs. State of Punjab



13. Which one of the following objectives is not embodied in the Preamble to the Constitution of India?

- (a) Liberty of thought
- (b) Economic liberty
- (c) Liberty of expression
- (d) Liberty of belief



15. Which one of the following reflects the most appropriate relationship between law and liberty?

- (a) If there are more laws, there is less liberty.
- ☒ (b) If there are no laws, there is no liberty.
- (c) If there is liberty, laws have to be made by the people
- (d) If laws are changed too often, liberty is in danger

16. Which among the following is the correct expression of the term 'Secular' in India?

- (a) India has many religions.
- (b) Indians have religious freedom.
- (c) Following the religion depends upon the will of an individual.
- (d) There is no religion of the State in India.



17. The mind of the makers of the constitution of India is reflected in which of the following?

- (a) The Preamble
- ◀ (b) The Fundamental Rights
- (c) The Directive Principles of State Policy
- (d) The Fundamental Duties



18. Which of the following is correct?

- (a) Social equality is not guaranteed in our Constitution
- (b) Social equality already existed in our country
- ☒ (c) Social equality is guaranteed in our Constitution
- (d) None of the above

Ans. (c) Social Equality has been guaranteed in our Constitution under the 'Right to Equality' in Articles 14 to 18. The Right to Equality aims to ensure social equality.



Application- Dewashish Classes



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19. Constitutional government means

- (a) a representative government of a nation with federal structure
- (b) a government whose Head enjoys nominal powers
- ☒ (c) a government whose Head enjoys real powers
- (d) a government limited by the terms of the Constitution



20. One of the implications of equality in society is the absence of

- (a) Privileges
- (b) Restraints
- (c) Competition
- (d) Ideology



21. Which one of the following factors constitutes the best safeguard of liberty in a liberal democracy?

- (a) A committed judiciary
- (b) Centralization of powers
- (c) Elected government
- (d) Separation of powers

Separation of Powers- Checks and B



22. "All individuals are fully and equally human" this principle is known as

- (a) Universalism
- (b) Holism
- (c) Socialism
- (d) Interactionism



23. India has people's sovereignty because the Preamble of the Constitution begins with the words :

- (a) Democratic India
- (b) Republic of People
- (c) Democracy of People
- (d) We, the People of India



24. 'India is a Republic' means

- (a) It is the people who are the final authority in all matters.
- (b) There is no Parliamentary System of Government in India.
- (c) There are no hereditary rulers in India.
- (d) India is the Union of States

25. How many types of justice, liberty, equality and fraternity in that order have been mentioned in the preamble of constitution of India?

- (a) 3, 5, 2, 1
- (b) 1, 3, 5, 2
- (c) 2, 5, 3, 1
- (d) 5, 2, 1, 3



Preamble the
Indian Cons

We the people of India...

